

****Police Report****

****Hvidovre Municipality Recommended for Fine****

****Date: 22-01-2024****

****Decision****

****Public Authorities****

****Police Report****

****Reported Breach of Personal Data Security****

****Processing Security****

****Unintentional Disclosure****

****Children****

****Unauthorized Access****

The Danish Data Protection Agency has reported Hvidovre Municipality to the police, as the agency assesses that the municipality has not met the requirements for an appropriate level of security under the General Data Protection Regulation (GDPR).

The Data Protection Agency became aware of the case when the municipality reported a breach of personal data security on June 25, 2021. The case revealed that the municipal dental care had a self-service solution where custodial parents initially had access to, among other things, the dental care's letters. The municipality subsequently expanded access to the system to also include non-custodial parents with joint custody. Furthermore, the municipal dental care had a fixed practice where letters containing the child's address were automatically sent to both custodial parents. This resulted in the disclosure of information and unauthorized access to information about the child's address, despite the fact that the child and possibly also the parent and any siblings sharing the same residence as the child had name and address protection.

Thus, Hvidovre Municipality granted both custodial parents access to the dental care's letters containing protected addresses without assessing in each individual case whether the relevant information could be disclosed to the other custodial parent. In addition, the municipality subsequently initiated the automatic sending of letters from dental care—which in several cases contained protected addresses of children—to both custodial parents, without having assessed whether the information could be disclosed to the other parent.

****Requirement for Appropriate Security****

The GDPR's requirement for appropriate processing security entails, among other things, that the data controller, in connection with changes in an IT environment, software, or automated processes, ensures that the changes do not have unintended consequences for the data subjects.

"It is not always easy to discern what the consequences are when changing IT systems that contain integrations and automated processes. However, it is nonetheless necessary to approach this thoroughly and map it out—the risk for some citizens can indeed be very significant. Better change management in Hvidovre Municipality could have made a significant difference," says Ditte Yde Amsnæs, head of department at the Data Protection Agency.

The Data Protection Agency has previously recommended fines in two similar cases in Frederiksberg Municipality and Vejle Municipality.

****Recommendation for Fine****

The Data Protection Agency always conducts a specific assessment of the severity of the case pursuant to Article 83, paragraph 2 of the GDPR when evaluating which sanction, in the agency's opinion, is appropriate.

Although the breach occurred back in 2021, and Hvidovre Municipality quickly rectified the situation after the breach was identified, the Data Protection Agency has, based on the circumstances and seriousness of the case, chosen to report Hvidovre Municipality to the police and recommends that a claim be made for the municipality to be fined a total of no less than 200,000 DKK.

In its recommendation for the fine amount, the Data Protection Agency has particularly emphasized the nature and seriousness of the violation, and the regulation's requirement that a fine in each individual case must be effective, proportionate to the violation, and have a deterrent effect. The Data Protection Agency has emphasized that access to the addresses could have serious consequences for citizens who specifically had address protection to prevent the other parent from knowing the address. In calculating the fine, the size of the municipality in relation to the population and the total operating budget has also been taken into account.

****Want to Know More?****

In the Data Protection Agency's catalog of measures, one can read more about change management, examples of scenarios, and a range of security measures and initiatives that may be relevant to consider to ensure appropriate security.

One can also read about this type of breach here: Protected address mistakenly exposed after change in IT system.

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